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11 *Attorneys for Plaintiff: Midland Credit Management, Inc*

Electronically FILED by
Superior Court of California,
County of Los Angeles
9/04/2025 11:38 AM
David W. Slayton,
Executive Officer/Clerk of Court,
By L. Bush, Deputy Clerk

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SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES
LIMITED CIVIL JURISDICTION

Midland Credit Management, Inc,

Case No. 24CHLC00282

Plaintiff,

**DECLARATION IN SUPPORT OF
APPLICATION FOR ENTRY OF
DEFAULT JUDGMENT PURSUANT TO
CIVIL CODE § 1788.60**

vs.

EVAN NINO MAPOY, an individual, et al.,

Defendant.

The declaration is attached hereto and hereby
incorporated herein.

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8 STATE OF CALIFORNIA
9 COUNTY OF _____

10 Midland Credit Management, Inc,
11 Plaintiff
12 -vs-
13 EVAN NINO MAPOY,
14 Defendant(s).

DECLARATION OF JOSEPH PICKAR
IN SUPPORT OF JUDGMENT

15
16
17 Joseph Pickar, whose business address is 600 W. Saint Germain St Suite 200, St. Cloud,
18 MN 56301-3616, certifies and says:

- 19 1. I am an officer for and employed as a Legal Specialist by Midland Credit Management
20 Inc. ("Plaintiff"). I am a competent person over eighteen years of age, and make the
21 statements herein based upon personal knowledge of those account records maintained by
22 Plaintiff. Plaintiff is the current owner of, and/or successor to, the obligation sued upon,
23 and was assigned all the rights, title and interest to Defendant's CITIBANK, N.A. account
24 XXXXXXXXXXXXX7350 (MCM Number [REDACTED]) (hereinafter "the Account").
25 2. I have access to and have reviewed the electronic records pertaining to the Account
26 maintained by MCM and am authorized to make this affidavit on MCM's behalf. The
27 electronic records reviewed consist of (i) data and records acquired from the seller or assignor
28

DECLARATION OF JOSEPH PICKAR - 1

[REDACTED]

1 when MCM purchased or was assigned the Account, which were incorporated into MCM's
2 business records upon purchase or assignment, and (ii) data and records generated by MCM
3 in connection with servicing the Account since the date the Account was purchased by or was
4 assigned to MCM. In addition, I reviewed the documents that are attached to this affidavit.

5 3. I am familiar with and trained on the manner and method by which MCM creates
6 and maintains its business records pertaining to this Account, which consist of (i) data and
7 documents acquired from the seller, and (ii) subsequent collection and/or servicing activities
8 by MCM. The records are acquired or created, and are kept in the regular course of MCM's
9 business. It was in the regular course of MCM's business for a person with knowledge of
10 the subsequent collection and/or servicing activities recorded to make the record or data
11 compilation, or to transmit information thereof to be included in such record, or for such
12 information to be posted in MCM's records by a computer or similar digital means. In the
13 regular course of MCM's business, the record or compilation of the subsequent collection
14 activities is made at or near the time of the act or event by MCM as a regular practice.

15 4. On or about 2023-02-22, Midland Credit Management, Inc became the successor in
16 interest to this Account. Plaintiff acquired and incorporated the attached Account records into
17 its permanent business records as a result of Plaintiff's purchase or assignment of the Account.
18 These records are kept in Plaintiff's regular course of business and, along with the electronic
19 records provided at the time of purchase or assignment, are Plaintiff's primary source of
20 business records for this Account.

21 5. The accuracy of such records is relied upon by Plaintiff in collecting this Account. These
22 records are trustworthy and relied upon because the original creditor was required to keep
23 careful records of the Account at issue in this case as required by law and/or suffer business
24 loss.

25 6. This Account was purchased after 2014-01-01 and, therefore, is subject to California
26 Civil Code Section 1788.60.

1 7. In accordance with California Civil Code sections 1788.58(a)(3-8), MCM's records show
2 the following relevant information concerning the Account:

3 a. Plaintiff is the sole owner of the Account.

4 b. The Account was opened on 2021-08-24 and charged off on 2023-01-11 with a
5 balance of \$3,115.47.

6 c. MCM's records show that the balance of \$3,115.47 remains due and owing as of
7 2024-01-17. Plaintiff is not seeking to recover any post-charge-off interest and/or fees that
8 may have been imposed by the charge-off creditor or subsequent purchasers of the debt and is
9 seeking to recover only that portion of the charge-off balance that remains due and owing as of
10 2024-01-17.

11 d. The last payment posted to the Account on 2022-07-25.

12 e. The charge-off creditor name and address at the time of charge-off:

13 CITIBANK, N.A., 5800 SOUTH CORPORATE PLACE , SIOUX FALLS, SD

14 57108

15 f. The charge-off Account number associated with the debt at time of charge-off was

16 XXXXXXXXXXXXX7350.

17 g. Defendant's name and last known address as it appeared in the charge-off creditor
18 or debt owner's records:

19 EVAN NINO MAPOY, 19713 LULL ST , WINNETKA, CA 91306

20 h. The complete chain of title including CITIBANK, N.A. and all post-charge-off
21 purchasers/assignees of the debt are as follows:

22 1. CITIBANK, N.A. 5800 SOUTH CORPORATE PLACE, SIOUX FALLS, SD, 57108

23 2. Midland Credit Management, Inc. 350 CAMINO DE LA REINA, SUITE 100, SAN
24 DIEGO, CA, 92108

25 8. MCM's records show that MCM or its agents made demand for payment of the balance
26 herein prior to making this affidavit and Defendant(s) failed to make full payment of the
27 amount owed on the Account.

1 9. Attached hereto as Exhibits A, B, and C are the Account records I reviewed in executing
2 the affidavit that relate to the Account and/or payment(s) received.

3 Exhibit A. Chain of Title and Seller Data Sheet - establishing the facts
4 required under Civil Code sections 1788.58(a)(3), (4), (5), (7)
5 and (8)

6 Exhibit B. Monthly Statement Recording a Purchase Transaction,
7 Payment, or Balance Transfer - establishing the fact required
8 under Civil Code section 1788.58(a)(5)

9 Exhibit C. Final Billing Statement or other Records - establishing the facts
10 required under Civil Code sections 1788.58(a)(4) and (6)

11 10. The documents attached hereto are true and correct copies of the originals, being a
12 reproduction of Plaintiff's records, based upon my review, except to the extent that confidential
13 and privileged information and/or personal identifying information is omitted or redacted as
14 required by local rules, and applicable state and federal law.

15 11. If called to testify as a witness thereon, I could and would competently testify as to all
16 the facts stated herein.

17
18 I declare under penalty of perjury under the laws of the State of California that the foregoing
19 statements are true and correct.

20
21
22 FEB 01 2024

23 Date

24
25 Joseph Pickar

26 IL85
27 Mandarin Law Group, LLP

Christopher D. Mandarich SB 220693
Teona Pipia SB 343337
Martin Weingarten SB 201906
Sarkis Karayan SB 316926
MANDARICH LAW GROUP, LLP
P.O. Box 109032 Chicago, IL 60610
Telephone: 877.285.4918
Facsimile: 818.888.1260
Mandarich Law Group, LLP California Debt Collector License Number 10795-99.
Attorneys for Plaintiff: Midland Credit Management, Inc

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF LOS ANGELES**

Midland Credit Management, Inc,
Plaintiff,

Case No. 24CHLC00282

vs.

**DECLARATION IN SUPPORT OF
DEFAULT**

EVAN NINO MAPOY ;, an individual
and DOES 1 through 100
Defendant.

I, Christopher D. Mandarich, declare as follows:

1. I am an attorney at law duly licensed to practice before all courts in the State of California, and before this honorable Court. I am an attorney of record for Plaintiff, Midland Credit Management, Inc. I have personal knowledge of the facts set forth herein and if called to testify, I could and would do so competently under oath.
2. Plaintiff submits this declaration to address the prior rejection of Plaintiff's Request for Default Judgment on the ground of electronic service.
3. The defendant accepted service of the summons and complaint by executing and returning a **Code of Civil Procedure section 417.10(d)** acknowledgment of receipt. A true and correct copy of that acknowledgment is attached to the proof of service on file.
4. To avoid any confusion, this case does not involve "electronic service" under Code of Civil Procedure section 1010.6, which governs the transmission of documents after a party has appeared. Rather, service here was accomplished pursuant to **Code of Civil Procedure**

EXHIBIT A

BILL OF SALE AND ASSIGNMENT
September 2021 Brands Fresh 180 Day Flow Lot 1

THIS BILL OF SALE AND ASSIGNMENT dated February 22, 2023, is by Citibank, N.A., a national banking association organized under the laws of the United States, located at 5800 South Corporate Place, Sioux Falls, SD 57108 ("Bank"), to Midland Credit Management, Inc., a corporation organized under the laws of Kansas, with its headquarters/principal place of business at 350 Camino De La Reina, Suite 100, San Diego, CA 92108 ("Buyer").

For value received and subject to the terms and conditions of the Master Purchase and Sale Agreement dated April 30, 2021 between Bank, Department Stores National Bank, and Buyer (the "Master Purchase Agreement"), and that certain Addendum No. 6 dated September 22, 2021, between Bank and Buyer (the "Addendum", and together with the Master Purchase Agreement, the "Agreement"), the Bank does hereby transfer, sell, assign, convey, grant, bargain, set over and deliver to Buyer, and to Buyer's successors and assigns, the Accounts summarized on the Asset Schedule attached hereto as Exhibit A and included in the Final Electronic File. Capitalized terms not defined herein shall have the definition ascribed in the Agreement.

With respect to information for the Accounts summarized on the Asset Schedule and included in the Final Electronic File, the Bank represents and warrants to Buyer that (i) the Account information constitutes the Bank's own business records and accurately reflects in all material respects the information in the Bank's database; (ii) the Account information was kept in the regular course of business; (iii) the Account information was made at or near the time by, or from information transmitted by, a person with knowledge of the data entered into and maintained in the Account's database; and (iv) it is the regular practice of the Bank's business to maintain and compile such data.

CITIBANK, N.A.

MIDLAND CREDIT MANAGEMENT, INC.

By: Brandy Reardon
(Signature)

By: Danielle Wohlfahrt
(Signature)

Name: Brandy Reardon

Name: Danielle Wohlfahrt

Title: Authorized Party

Title: MVP, Business Development and Strategic Partnerships

Contract ID: EN8MUMAA043021
Addendum ID: EN8MUMAA092221C6
Document ID: 021323MC1MU3FMA1

Exhibit A to Bill of Sale

The individual Accounts transferred are described in the Final Electronic File named Encore-Brands-Fresh-Flow-Lot1-0223 and delivered by the Bank to Buyer, the same deemed attached hereto by this reference.

Lot	Sale ID	# of Accounts	Sale Balance	Cut-Off Date	Purchase Price Percentage
Brands Fresh Flow Lot 1	021323MC1MU3FM			2/13/2023	

AFFIDAVIT OF SALE OF ACCOUNT

State of Missouri
County of Platte

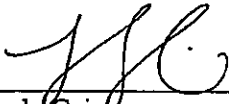
Lindy Cain, being duly sworn, deposes and says:

I am an authorized employee of Citibank, N.A. ("CBNA") located at 5800 South Corporate Place, Sioux Falls, SD 57108, am authorized to make the statements and representations herein and I am over 18 years of age. In this position, I have access to the creditor's books and records and am aware of the process of the sale of accounts and electronic storage of business records.

On or about February 22, 2023, CBNA sold a pool of charged-off accounts (the Accounts) by a Master Purchase and Sale Agreement dated April 30, 2021, Bill of Sale, and Addendum No. 6 dated September 22, 2021 to Midland Credit Management, Inc.. As part of the sale of the Accounts, certain electronic records were transferred on individual accounts to the debt buyer. These records were kept in the ordinary course of business of creditor.

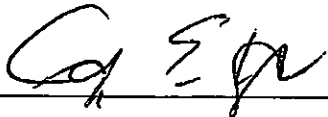
I am not aware of any errors in the information provided about the Accounts. The above statements are true to the best of my knowledge.

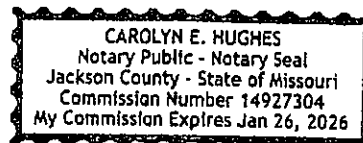
Signed this 1 day of MARCH, 2023.


Lindy Cain

State of Missouri)
) ss
County of Platte)

On this 1 day of MAR, 2023, before me, the undersigned notary, personally appeared Lindy L. Cain, personally known to me to be the person who signed the preceding or attached document in my presence and who swore or affirmed to me that the contents of the document are truthful and accurate to the best of his/her knowledge and belief.

 [SEAL]

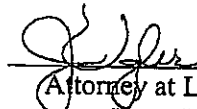


CERTIFICATE OF CONFORMITY

STATE OF MISSOURI CITY OF KANSAS CITY

I, Joyce Vogler an attorney-at-law of the State of Missouri who is licensed to practice law in the State of Missouri and is fully acquainted with the laws of the State of Missouri pertaining to the acknowledgement or proof of deeds of real property to be recorded therein, do hereby certify that I am duly qualified to make this certificate of conformity pursuant to Section 299-a of the Real Property Law of the State of New York and hereby certify that the acknowledgement or proof upon the foregoing document was taken by Carolyn E. Hughes a notary public in the State of Missouri, in the manner prescribed by the laws of the State of Missouri and conforms to the laws thereof in all respects.

IN WITNESS WHEREOF, I have hereunto set my signature, this 1st day of MAR., 2023.



Attorney at Law Bar # 51227
Joyce Vogler

Field	Field Data
Account Number	7350
First Name	EVAN
Middle Name	NINO
Last Name	MAPOY
SSN	
Date of Birth	
Address 1	19713 LULL ST
City	WINNETKA
State	CA
Zip	91306
Open Date	08/24/2021
Last Purchase Date	05/30/2022
Last Payment Date	07/25/2022
Last Payment Amount	\$20.00
Sale Amount	\$3,115.47
Charge Off Date	01/11/2023
Charge off Balance	\$3,115.47
Post Charge Off Interest	\$0.00
Post Charge off Fee	\$0.00
Post Charge off Payments	\$0.00
Post Charge off Payments and Credits	\$0.00
Post Charge off Credits	\$0.00
Affinity	AADVANTAGE MILEUP

Account information provided by Citibank, N.A. pursuant to the Bill of Sale/Assignment of Accounts transferred on or about 02/22/2023 in connection with the sale of accounts from Citibank, N.A. to Midland Credit Management, Inc.

Encore-Brands-Fresh-Flow-Lot1-0223

Account Ownership Report
2024-01-17

Debtor Name: EVAN NINO MAPOY	
MCM Account Number: [REDACTED]6588	Current Owner: Midland Credit Management, Inc

Ownership History		
Date of Transfer	Owner/Creditor	Owner/Creditor Address

1. 2023-02-22 CITIBANK, N.A. 5800 SOUTH CORPORATE
PLACE,SIOUX FALLS,SD,57108
2. Midland Credit 350 CAMINO DE LA REINA,SUITE
Management, Inc. 100,SAN DIEGO,CA,92108

[REDACTED]
[REDACTED]

[REDACTED]
[REDACTED]

[REDACTED]
[REDACTED]

EXHIBIT B

AADVANTAGE MILEUPSM CARD

EVAN NINO MAPOY

Member Since 2021 Account number ending in: 7350

Billing Period: 07/13/22-08/10/22

www.citibank.com

Customer Service 1-800-388-2200

TTY: 711

BOX 6500 SIOUX FALLS, SD 57117

AUGUST STATEMENT

Minimum payment due: **\$1,580.36**
New balance as of 08/10/22: **\$2,613.54**
Payment due date: **09/08/22**

See the last page of this statement for important information about how to avoid paying interest on purchases.

Late Payment Warning: If we do not receive your minimum payment by the date listed above, you may have to pay a late fee of up to \$40 and your APRs may be increased up to the Penalty APR of 29.99%.

Minimum Payment Warning: If you make only the minimum payment each period, you will pay more in interest and it will take you longer to pay off your balance. For example:

If you make no additional charges using this card and each month you pay...	You will pay off the balance shown on this statement in about...	And you will end up paying an estimated total of...
Only the minimum payment	4 year(s)	\$3,413

For information about credit counseling services, call 1-877-337-8188.

Your account is past due \$145.62 and over the credit limit by \$1313.54. Please pay at least the Minimum Payment Due, which includes a past due amount and an Overlimit Amount.

Account Summary

Previous balance	\$2,538.34
Payments	-\$20.00
Credits	-\$0.00
Purchases	+\$0.00
Cash advances	+\$0.00
Fees	+\$40.00
Interest	+\$55.20

New balance **\$2,613.54**

Credit Limit

Revolving Credit limit **\$1,300**
Includes \$400 cash advance limit

For Payments, send check to: CITI CARDS, PO BOX 78045, Phoenix, AZ, 85062-8045

Pay your bill from virtually anywhere
with the Citi Mobile[®] App and Citi[®] Online



To download:
Text 'App15' to MyCiti (692484)
or go to your device's app store.
Or visit www.citibank.com

Minimum payment due **\$1,580.36**
New balance **\$2,613.54**
Payment due date **09/08/22**

Amount enclosed:

Account number ending in 7350
Please make check payable to CITI CARDS.

000000 PW 32 A 0

EVAN NINO MAPOY
19713 LULL ST
WINNETKA CA 91306-2676

CITI CARDS
PO BOX 78045
Phoenix, AZ 85062-8045

EVAN NINO MAPOY

TTY:711

Account Summary

Trans. date	Post date	Description	Amount
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Payments, Credits and Adjustments

07/24		ONLINE PAYMENT, THANK YOU	-\$20.00
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Fees charged

Date	Description	Amount
08/10	LATE FEE - JUL PAYMENT PAST DUE	\$40.00
Total fees charged in this billing period		\$40.00

Interest charged

Date	Description	Amount
08/10	INTEREST CHARGED TO STANDARD PURCH	\$55.20
Total interest charged in this billing period		\$55.20

2022 totals year-to-date

Total fees charged in 2022	\$108.00
Total interest charged in 2022	\$177.93

Interest charge calculation

Days in billing cycle: 29

Your Annual Percentage Rate (APR) is the annual interest rate on your account.

Balance type	Annual percentage rate (APR)	Balance subject to interest rate	Interest charge
PURCHASES			
Standard Purch	27.24% (V)	\$2,550.74 (D)	\$55.20
ADVANCES			
Standard Adv	27.49% (V)	\$0.00 (D)	\$0.00

Your Annual Percentage Rate (APR) is the annual interest rate on your account. APRs followed by (V) may vary. Balances followed by (D) are determined by the daily balance method (including current transactions).

Account messages

For any customer who believes they may be a victim of Identity theft, we encourage you to visit the Federal Trade Commission (FTC) website <http://www.IdentifyTheft.gov>, which provides victims of identity theft with resources to help guide you through the recovery process. For questions about FTC Identity Theft recovery solutions, please contact 1-877-438-4338 or 1-866-653-4261 (TTY). Due to redundancies with the FTC process, Citi will be discontinuing the Citi Identify Theft Solutions service effective January 15, 2023. As a reminder, if you have a concern about suspected fraud on your Citi credit card or your Citi bank account, please contact us at the number on the back of your credit or debit card.

Your account is past due \$145.62 and over the credit limit by \$1313.54. Please pay at least the Minimum Payment Due, which includes a past due amount and an Overlimit Amount. If you have already sent us this payment, thank you.

Please be sure to pay on time. If you submit your payment by mail, we suggest you mail it no later than 09/01/2022 to allow enough time for regular mail to reach us.

EVAN NINO MAPOY

TTY:711

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EXHIBIT C

AADVANTAGE MILEUPSM CARD

EVAN NINO MAPOY

Member Since 2021 Account number ending in: 7350

Billing Period: 12/13/22-01/11/23

www.citicards.com

Customer Service 1-800-925-8871

TTY: 711

BOX 6500 SIOUX FALLS, SD 57117

JANUARY STATEMENT

Minimum payment due: **\$3,115.47**
New balance as of 01/11/23: **\$3,115.47**
Payment due date: **01/11/23**

See the last page of this statement for important information about how to avoid paying interest on purchases.

Late Payment Warning: If we do not receive your minimum payment by the date listed above, you may have to pay a late fee of up to \$40 and your APRs may be increased up to the Penalty APR of 29.99%.

Minimum Payment Warning: If you make only the minimum payment each period, you will pay more in interest and it will take you longer to pay off your balance. For example:

If you make no additional charges using this card and each month you pay...	You will pay off the balance shown on this statement in about...	And you will end up paying an estimated total of...
Only the minimum payment	1 month(s)	\$3,115

For information about credit counseling services, call 1-877-337-8188.

Account Summary

Previous balance	\$3,041.56
Payments	-\$0.00
Credits	-\$0.00
Purchases	+\$0.00
Cash advances	+\$0.00
Fees	+\$0.00
Interest	+\$73.91
New balance	\$3,115.47

Credit Limit

Revolving Credit limit **\$1,300**
Includes \$400 cash advance limit

For Payments, send check to: CITI CARDS, PO BOX 78045, Phoenix, AZ, 85062-8045

Pay your bill from virtually anywhere with the Citi Mobile® App and Citi® Online



To download:
Text 'App15' to MyCiti (692484)
or go to your device's app store.
Or visit www.citicards.com

Minimum payment due **\$3,115.47**
New balance **\$3,115.47**
Payment due date **01/11/23**

Amount enclosed:

Account number ending in 7350
Please make check payable to CITI CARDS.

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EVAN NINO MAPOY
19713 LULL ST
WINNETKA CA 91306-2676

CITI CARDS
PO BOX 78045
Phoenix, AZ 85062-8045

EVAN NINO MAPOY

Account Summary

Trans. date	Post date	Description	Amount

Fees charged

Total fees charged in this billing period	\$0.00
---	--------

Interest charged

Date	Description	Amount
01/11	INTEREST CHARGED TO STANDARD PURCH	\$73.91

Total interest charged in this billing period	\$73.91
---	---------

2023 totals year-to-date

Total fees charged in 2023	\$0.00
Total interest charged in 2023	\$73.91

Interest charge calculation

Days in billing cycle: 30

Your Annual Percentage Rate (APR) is the annual interest rate on your account.

Balance type	Annual percentage rate (APR)	Balance subject to interest rate	Interest charge
PURCHASES			
Standard Purch	29.24% (V)	\$3,075.35 (D)	\$73.91
ADVANCES			
Standard Adv	29.49% (V)	\$0.00 (D)	\$0.00

Your Annual Percentage Rate (APR) is the annual interest rate on your account. APRs followed by (V) may vary. Balances followed by (D) are determined by the daily balance method (including current transactions).

Account messages

Please note that if we received your pay by phone or online payment between 5 p.m. ET and midnight ET on the last day of your billing period, your payment was credited as of the date of receipt, but will not be reflected until your next statement.

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